

TERMS AND CONDITIONS

www.autocarecompanion.com

Effective Date: December 1, 2025

These Terms and Conditions (the "Terms") constitute a legally binding agreement between you ("User," "you," or "your") and Dvon Invest LLC, a limited liability company organized and existing under the laws of the State of California, with its principal place of business in California, United States (the "Company," "we," "us," or "our"), governing your access to and use of the website located at <https://autocarecompanion.com> (the "Website"), including any subdomains, mobile applications, features, content, products, services, or other materials offered thereon (collectively, the "Services").

By accessing or using the Services, you acknowledge that you have read, understood, and agree to be bound by these Terms, as well as our Privacy Policy, Cookie Policy, Shipping, Return and Policy, and any other policies incorporated herein by reference (collectively, the "Policies"). If you do not agree to these Terms, you must immediately cease using the Services.

1. Definitions

For the purposes of these Terms, the following capitalized terms shall have the meanings ascribed to them below:

- "AI Services" means the artificial intelligence-powered features of the Services, including but not limited to part matching, maintenance guides, fluid amount and type recommendations, and other vehicle-related information derived from online sources.
- "Affiliate Links" means hyperlinks or referrals to third-party products or services, including those provided through AutoDS and Amazon, for which we may receive compensation.
- "Content" means all text, images, data, software, graphics, audio, video, and other materials available through the Services, whether provided by us, you, or third parties.
- "Products" means automotive parts, fluids, and related items available for purchase through the Website's e-commerce features, sourced via our Shopify store and Drop-Shipping Service.
- "User Data" means any information, including personal information, vehicle details, mileage, or purchase history, that you provide or that is collected in connection with your use of the Services.

All other terms not defined herein shall have their ordinary meaning in the context of these Terms.

2. Eligibility and Access

You represent and warrant that you are at least eighteen (18) years of age or the age of majority in your jurisdiction, whichever is greater, and possess the legal capacity to enter into these Terms. The Services are intended for users in the United States only with respect to purchases and e-commerce transactions; however, the Website may be viewable globally.

If you access the Services from outside the United States, you do so at your own risk and are responsible for compliance with local laws. We reserve the right to restrict access to the Services or any portion thereof based on geographic location, including blocking purchases from non-U.S. users.

3. Account Registration and Security

To access certain features of the Services, such as personalized AI recommendations or purchase tracking, you may be required to create an account ("Account"). You agree to provide accurate, current, and complete information during registration and to update such information as necessary. You are solely responsible for maintaining the confidentiality of your Account credentials and for all activities occurring under your Account. You must notify us immediately of any unauthorized use or security breach. We reserve the right to suspend or terminate your Account at our discretion, without liability, for any violation of these Terms or for any other reason.

4. Description of Services

4.1 AI-Powered Vehicle Maintenance Tools An artificial intelligence system that provides task-based maintenance guidance (e.g., oil changes, brake replacement, fluid checks), recommends compatible parts directly from our Shopify inventory, and displays fluid types, capacities, specifications, and other vehicle-related information sourced from publicly available online resources.

4.2 E-Commerce Functionality The ability to purchase automotive parts, fluids, tools, and related products ("Products") directly through the Website. All Product purchases are processed via our integrated Shopify store and fulfilled through our drop-shipping partner, AutoDS.

4.3 General Provisions All components of the Services, whether currently available or planned for future release, are provided strictly on an "as is" and "as available" basis. We reserve the right to modify, suspend, or discontinue any feature, functionality, or Product offering at any time without prior notice or liability. Availability of AI recommendations, Product inventory, pricing, and future subscription services is subject to change without obligation.

5. User Conduct and Prohibited Activities

You agree to use the Services only for lawful purposes and in compliance with these Terms. Prohibited activities include, but are not limited to: (a) violating any applicable laws or regulations; (b) interfering with the Services or any user's enjoyment thereof; (c) uploading harmful code, viruses, or malware; (d) impersonating any person or entity; (e) harvesting or collecting User Data without consent; (f) engaging in commercial activities not authorized by us; or (g) reverse engineering, decompiling, or attempting to derive the source code of the Services. We may monitor your use and take appropriate action, including legal remedies, for any violations.

6. Intellectual Property Rights

All Content, including but not limited to the AI algorithms, software, trademarks, logos, and designs associated with the Services, is owned by us or our licensors and protected by United States and international copyright, trademark, patent, and other intellectual property laws. You are granted a limited, non-exclusive, non-transferable, revocable license to access and use the Services for personal, non-commercial purposes only. Any unauthorized use, reproduction, or distribution of our intellectual property is strictly prohibited and may result in severe civil and criminal penalties.

7. User-Generated Content

If you submit any Content to the Services (e.g., vehicle details, reviews, or feedback), you grant us a worldwide, perpetual, irrevocable, royalty-free license to use, reproduce, modify, distribute, and display such Content in connection with the Services. You represent that you own or have rights to such Content and that it does not infringe third-party rights. We are not responsible for User-Generated Content and may remove it at our discretion.

8. Third-Party Integrations and Links

The Services integrate with third-party platforms, including Shopify for e-commerce, AutoDS for Drop-Shipping, Stripe for payments (if applicable), and Affiliate Links to Amazon and others. We are not responsible for the practices, terms, or content of these third parties. Your interactions with them are governed by their respective policies. We disclaim all liability arising from your use of third-party services.

9. Purchases and Payments

All purchases of Products are processed through our Shopify store. Prices are in U.S. dollars and exclude taxes, shipping, and handling fees, which you agree to pay. We accept payments via authorized methods (e.g., credit cards via Stripe). You authorize us to charge your payment method for all amounts due. Title to Products passes upon shipment, and risk of loss transfers to you upon delivery to the carrier. We reserve the right to cancel orders or refuse service at our discretion.

10. Shipping and Delivery

Products are shipped via our Drop-Shipping Service providers. Delivery times are estimates only and not guaranteed. We offer paid shipping options; free shipping may be available for qualifying orders at our discretion. You are responsible for providing accurate shipping information. We are not liable for delays, losses, or damages caused by carriers or events beyond our control, such as customs delays for international viewers (though purchases are U.S.-only).

11. Returns, Refunds, and Cancellations

Returns, refunds, and cancellations are governed by the AutoDS Return Policy, accessible at <https://help.autods.com/managed-accounts-system-returns/-cancellations-process-explanation>, as integrated with our Shopify platform. Generally, we accept returns for defective or incorrect items within a specified period as specified in our policy, subject to inspection.

Refunds are processed to the original payment method. No refunds for digital Services or non-defective items unless required by law. Cancellations may be requested prior to shipment but are not guaranteed.

To the extent there is any inconsistency between these Terms and the applicable AutoDS return and cancellation rules for an order, the AutoDS policy will govern how that specific return, refund, or cancellation is processed.

12. Subscriptions and Future Features

If we introduce subscription-based Services (e.g., maintenance notifications), you agree to recurring billing terms disclosed at signup. You may cancel subscriptions via your Account, but no refunds for partial periods. Future features are subject to separate terms and may require additional fees. We make no representations regarding the availability or timeline of unreleased features.

13. Disclaimers for AI Services

THE AI SERVICES ARE PROVIDED FOR INFORMATIONAL PURPOSES ONLY AND ARE NOT A SUBSTITUTE FOR PROFESSIONAL ADVICE. INFORMATION ON PARTS, MAINTENANCE, FLUIDS, OR OTHER DETAILS IS DERIVED FROM ONLINE SOURCES AND MAY CONTAIN ERRORS OR INACCURACIES. YOU MUST CONSULT YOUR VEHICLE'S OWNER'S MANUAL, A QUALIFIED MECHANIC, OR VERIFY ALL INFORMATION INDEPENDENTLY BEFORE

RELYING ON IT. WE DISCLAIM ALL WARRANTIES REGARDING THE ACCURACY, COMPLETENESS, OR SUITABILITY OF AI-GENERATED CONTENT.

You are solely responsible for confirming all maintenance intervals, fluid types, fluid quantities, torque specifications, and part compatibility against your vehicle's owner's manual and/or advice from a qualified mechanic before buying any Products or performing any work. Under no circumstances should AI-generated information be treated as a replacement for the official manufacturer documentation for your vehicle.

14. General Disclaimers

THE SERVICES AND PRODUCTS ARE PROVIDED "AS IS" AND "AS AVAILABLE" WITHOUT WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT. WE DO NOT WARRANT THAT THE SERVICES WILL BE UNINTERRUPTED, ERROR-FREE, OR SECURE.

15. Limitation of Liability

TO THE MAXIMUM EXTENT PERMITTED BY LAW, WE SHALL NOT BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOSS OF PROFITS, DATA, OR USE, ARISING FROM YOUR USE OF THE SERVICES OR PRODUCTS, EVEN IF ADVISED OF THE POSSIBILITY THEREOF. OUR TOTAL LIABILITY SHALL NOT EXCEED THE AMOUNT PAID BY YOU FOR THE SPECIFIC PRODUCT OR SERVICE GIVING RISE TO THE CLAIM IN THE PRECEDING TWELVE (12) MONTHS.

16. Indemnification

You agree to indemnify, defend, and hold harmless the Company, its affiliates, officers, directors, employees, and agents from any claims, liabilities, damages, losses, or expenses (including reasonable attorneys' fees) arising from your use of the Services, violation of these Terms, or infringement of third-party rights.

17. Termination

We may terminate or suspend your access to the Services at any time, without notice or liability, for any reason, including breach of these Terms. Upon termination, your rights to use the Services cease, and you must destroy any downloaded Content. Sections that by their nature survive termination (e.g., disclaimers, liability limitations) shall remain in effect.

18. Changes to Terms

We may modify these Terms at any time by posting the revised version on the Website. Your continued use of the Services after such changes constitutes acceptance. It is your responsibility to review these Terms periodically.

19. Governing Law

These Terms shall be governed by and construed in accordance with the laws of the State of California, without regard to its conflict of laws principles. You consent to the exclusive jurisdiction and venue of the state and federal courts located in California for any disputes arising hereunder.

20. Dispute Resolution

Terms and Conditions – Amended Sections 19 and 20

(Dispute Resolution & Governing Law)

Effective Date: December 1, 2025

19. Governing Law

These Terms and any dispute or claim arising out of or relating to them, the Services, or the purchase of Products shall be governed by and construed in accordance with the laws of the State of California, without regard to its conflict of laws principles.

20. Dispute Resolution

20.1 Informal Good-Faith Negotiation

Before initiating any arbitration or court proceeding (except for claims seeking injunctive relief or claims eligible for small claims court), the party asserting a claim must first send written notice of the dispute to the other party describing the nature and basis of the claim and the specific relief sought. Notice to the Company shall be sent to: Dvon Invest LLC, 3257 Stiles Avenue, Camarillo California, 93010 Email: dvoninvestllc@yahoo.com

The parties agree to negotiate in good faith to resolve the dispute for a period of thirty (30) days from the date the notice is received. If the dispute is not resolved within this 30-day period, either party may proceed to formal arbitration or litigation as set forth below.

20.2 Binding Arbitration If the dispute is not resolved through the informal negotiation process in Section 20.1, any claim or controversy arising out of or relating to these Terms, the Services, or the purchase of Products (except claims eligible for small claims court or seeking injunctive relief) shall be finally settled by binding arbitration administered by the American Arbitration Association (“AAA”) under its Consumer Arbitration Rules then in effect. The arbitration shall take place in Los Angeles County, California (or, if the claimant is a consumer, via telephone or video conference). Judgment on the award rendered by the arbitrator may be entered in any court having jurisdiction thereof.

20.3 Arbitration Fees and Costs Each party shall initially bear its own costs and attorneys’ fees. The prevailing party in any arbitration or court proceeding shall be entitled to recover its reasonable attorneys’ fees and costs.

20.4 Class Action and Jury Trial Waiver You and the Company agree that any arbitration or court proceeding shall be conducted only on an individual basis and not as a class, consolidated, or representative action. You and the Company expressly waive any right to a trial by jury.

20.5 Exceptions Notwithstanding the foregoing, either party may bring an individual action in small claims court or seek injunctive or other equitable relief in any state or federal court in California to protect its intellectual property rights or to prevent imminent harm.

20.6 Exclusive Venue for Litigation To the extent any dispute is not subject to arbitration, you and the Company consent to the exclusive jurisdiction and venue of the state and federal courts located in Los Angeles County, California.

21. Severability

If any provision of these Terms is held invalid or unenforceable, the remaining provisions shall remain in full force and effect. The invalid provision shall be reformed to the minimum extent necessary to achieve its original intent.

22. Waiver

No waiver of any term or condition shall be deemed a further or continuing waiver of such term or any other term. Our failure to enforce any right or provision shall not constitute a waiver thereof.

23. Entire Agreement

These Terms, together with the Policies, constitute the entire agreement between you and us regarding the Services, superseding all prior agreements, understandings, or representations.

24. Assignment

You may not assign or transfer these Terms or your rights hereunder without our prior written consent. We may assign these Terms without restriction, including to any affiliate or successor.

25. Contact Information

For questions or notices regarding these Terms, contact us at: Dvon Invest LLC, 3257 Stiles Avenue, Camarillo California, 93010, or via email at dvoninvestllc@yahoo.com. All notices to you may be sent to the email associated with your Account.